



March 26, 2019

**NOTICE TO OWNERS
NEW RULE - SHORT TERM TENANCIES**

To: All Owners of Carleton Condominium Corporation No. 276

From: Board of Directors

Subject: **New Rule**

Date of Notice: **March 11, 2019**

1. Attached is a copy of the rule governing short term tenancies for C.C.C. 276 approved by the Board of Directors at their meeting of February 20th, 2019.
2. In accordance with the Condominium Act, it is intended that this rule will become effective on **Thursday April 25, 2019**, 30 days after this notice has been given to the Owners if the Board has not received a requisition for a meeting under section 46 of the Act within 30 days of the date of this notice.
3. The Owners are hereby advised that they have the right to requisition a meeting within 30 days of the date of this Notice pursuant to Section 46 of the Act which reads as follows:

Requisition for meeting

(1) A requisition for a meeting of owners may be made by those owners who at the time the board receives the requisition, own at least 15 per cent of the units, are listed in the record maintained by the corporation under subsection 47 (2) and are entitled to vote. 1998, c. 19, s. 46 (1).

Form of requisition

(2) The requisition shall,

- (a) be in writing and be signed by the requisitionists;
- (b) state the nature of the business to be presented at the meeting; and
- (c) be delivered personally or by registered mail to the president or secretary of the board or deposited at the address for service of the corporation. 1998, c. 19, s. 46 (2).

4. If there is no meeting requisitioned by the Owners, then the amendment will become effective on **Thursday April 25, 2019** and will be enforced by the Corporation from that point onward. If a meeting is requisitioned, the rule will become effective if the Owners approve the rule (by resolution of the Owners) at the requisitioned meeting.

BY ORDER OF THE BOARD



TENANCIES

Introduction

The following Rule respecting the use of the common elements and units is made to promote the safety, security and welfare of the owners and of the property or for the purpose of preventing unreasonable interference with the use and enjoyment of the common elements and of other units.

The Rules of the Corporation are binding on each unit owner and his or her family, visitors, agents, tenants or occupants of the unit.

This Rule is intended to clarify and, if necessary, expand upon the restriction contained in **Article IV** of the Corporation's Declaration which defines the occupation and use of the units

Definitions

Owner: Shall include Owners, their families, visitors, agents, tenants and occupants of the unit.

Any other words and phrases which are defined in the *Condominium Act, 1998* (as amended from time to time), or the Regulations thereunder or any successor thereto, ("the Act") shall have ascribed to them the meanings set out in the Act.

1. General

- 1.1 Any losses, costs or damages incurred by the Corporation by reason of a breach of this Rule by any Owner, his or her family, guests, servants, agents, tenants or occupants of his or her unit shall be borne by such Owner and may be recovered by the Corporation against such Owner in the same manner as common expenses. Without limiting the generality of the foregoing, such losses, costs or damages shall include, but shall not necessarily be limited to, the following:
 - (a) All legal costs incurred by the Corporation in order to enforce, or attempt to enforce, that which is laid out in the Declaration, By-Laws, and Rules of the Corporation;
 - (b) An administration fee in the amount of \$50.00, charged back against the owner if the breach is not corrected by the deadline provided in the notice from Management. A continued charge of \$50.00 per month will be levied on the first of each month while the breach is still in existence.
- 1.2 No restriction, condition, obligation or provision contained herein shall be deemed to have been abrogated or waived by reason of any failure to enforce the same irrespective of the number of violations or breaches thereof which may occur.
- 1.3 Each of the provisions of this Rule shall be deemed independent and severable and the invalidity or unenforceability in whole or in part of any one or more of them shall not impair or affect in any manner the validity, enforceability, or effect of the remaining part of this Rule, and in such event, the remainder of this Rule shall continue in full force and effect as if such invalid provision had never been included herein.



2. Tenancies

2.1 Each of the following uses shall be prohibited, both pursuant to the provisions of this Rule and the provisions of Article IV of the Corporation's Declaration, namely:

- (a) I. Airbnb or similar platform, hotel or lodging house use;
- II. the disposition of an owner's or tenant's right to occupy the residential unit whereby the party or parties acquiring such interest or right is or are entitled to use or occupy the unit on a transient use basis or under any arrangement commonly known as time sharing; and
- (b) any "Transient" use of the units, including, but without limiting the general meaning, more than one (1) short-term use or occupancy of a particular unit, including any such use or occupancy by persons other than the registered owner of the unit with the exception of bona fide guests of the Owner, for a period of less than six (6) months in any particular period of twelve (12) consecutive months.

2.2 A lease or tenancy shall be for an initial term of not less than six (6) months; except that a lease may be for an initial term of less than six (6) months when it is the bona fide intention of the Owner to, upon the expiration of the term, promptly thereafter complete a sale of the unit or take occupancy of the unit.

2.3 All tenancies for units shall be in writing.

2.4 Section 83 of the Act applies to all licenses, leases, sub-leases and other tenancies of any duration.

3. Exceptions

3.1 The foregoing does not prohibit "house sitting" arrangements that are approved by the Corporation in writing, in advance.

3.2 The foregoing does not prohibit the accommodation of visitors in the unit without receipt of payment or other consideration, where that accommodation is incidental to and normally associated with the permitted use of a dwelling unit for residential purposes.

4. Requirements for Leasing

Pursuant to Section 4.02 (a) of the Corporation's Declaration, *Where the owner of a unit leases his unit, such owner shall notify the corporation that the unit is leased and shall provide the corporation with the lessee's name and the owner's address.*

A Form 5 must be filled out and sent to Management this can be obtained by contacting the Property Manager.